

ASSIGNMENT BY SELLER

To _____ ("Creditor")

With respect to this retail installment contract ("Contract") signed by one or more buyers ("Buyer"), Seller represents and warrants that:

(1) Buyer's credit statement submitted herewith is completely accurate unless otherwise specified;

(2) Buyer was legally competent to contract at the time of Buyer's execution of this Contract;

(3) This Contract arose from the bona fide sale of the merchandise described in the Contract;

(4) The down payment was made by Buyer in cash unless otherwise specified and no part thereof was loaned directly or indirectly by Seller to Buyer;

(5) There is now owing on this Contract the amount set forth herein;

(6) This Contract and any guaranty submitted in connection herewith are in all respects legally enforceable against each purported signatory thereof;

(7) Seller has the right to assign this Contract and thereby to convey good title to it;

(8) In the event of any claim or defense asserted by any Buyer, or any heirs or assigns of Buyer, with respect to the Mobile Home or other property or consideration transferred pursuant to this retail installment contract, Seller agrees that it will indemnify and hold Creditor harmless from all such claims and defenses as well as from all costs reasonably incurred by Creditor in connection therewith, including but not limited to reasonable attorney fees and court costs; and

(9) In accordance with the Fair Credit Report Act, Seller has notified Buyer that this Contract is to be submitted to Creditor.

(10) In the event Buyer defaults on this Contract, Seller shall, within 90 days from the earlier date of repossession or when Seller is notified by Creditor of said default, resale the Mobile Home to a new buyer approved by Creditor and for an amount not less than 90% of the amount owing pursuant to this Contract. If Seller is unable to resale the Mobile Home as stipulated above, Seller will immediately purchase the Mobile Home from Creditor for an amount equal to the investment Creditor has in the Mobile Home plus a 12% return on said investment, amortized for the payments, if any, made by Buyer.

For value received, Seller hereby assigns to Creditor all its rights, title and interest in this Contract and the property which is the subject matter hereof and authorizes Creditor to do everything necessary to collect and discharge same. All the terms of any existing written agreements between Seller and Creditor are made a part hereof by reference, it being understood that Creditor relies upon the above warranties and upon said agreements in purchasing this Contract.

Regarding Buyer:

Regarding Mobile Home:

Seller: _____

Assignment accepted by:

G#:

By: _____